

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR JANUARY 15, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE JUDGE

**Unless the Court directs otherwise, appearances by counsel and parties in
Department 38 may be made as follows:**

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

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- | | |
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| 1.
9:00 AM | MSP04-01018 ESTATE OF ANNE GWILT
HEARING IN RE: PETITION FOR APPROVAL OF AMENDED SEVENTH ACCOUNTING AND FIRST ACCOUNTING FILED BY CAROLYN D CAIN ON 08/26/2025

Need:
<ol style="list-style-type: none">1. Appearances2. Verified declaration by petitioner to include schedule of assets on hand at end of 6th account period so court can verify assets on hand at beginning of 7TH account period
Notes:
<ol style="list-style-type: none">1. Petition includes an amended 7th accounting of atty. Barbara Suskind who reportedly is now deceased as indicated at page 4, line 25; however, amended 7th accounting is filed by atty. Carolyn Cain.2. Order After Hearing re: Seventh and Final Accounting filed 6-30-2021. |
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2A.	P22-01799	MATTER OF: JANE SIMMONS EDGINTON REVOCABLE TRUST DATED SEPTEMBER 1, 2021
9:00 AM	HEARING IN RE: RESPONDENT CRAIG SIMMONS' DEMURRER TO SECOND AMENDED PETITION FILED 08/21/25	
	Need: 1. Appearances 2. Proposed Order	

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2B.	P22-01799	MATTER OF: JANE SIMMONS EDGINTON REVOCABLE TRUST DATED SEPTEMBER 1, 2021
9:00 AM	HEARING IN RE: MOTION TO EXPUNGE LIS PENDENS FILED ON 08/13/25 BY CRAIG E. SIMMONS	
Need:		
1. Appearances 2. Proposed Order		
Notes:		
a. Opposition filed 12/22/2025 by Catherine Peters Kamins, John Alan Peters, Robert A Heisdorf, Joan C Heisdorf, Sarah Peters Gorman as successor in interest for William Bennett Peters, Michael Frederick Peters, John Bennett Peters, Rachel Peters Levin, Riley Bennett Peters, Chelsea Peters, Griffin Peters, Margaret L Smith, Rebecca Susan Peck, and Catherine Peters Kamins as power of attorney for Christine Peters Scheideman. b. Motion for Order for Production of Adult Protective Service Records filed 08/22/25 by Craig Simmons, set 01/20/26 c. Motion to Quash Subpoena to First American Title Company filed 08/22/25 by Craig Simmons, set 01/20/26 d. Motion for Trial Preference filed 11/21/25 by Catherine Peters Kamins, etc., set 04/21/26 e. Motion for Order to Compel Kathleen Donnelly to Appear for her Deposition and to Produce Documents filed 11/25/25 by Catherine Peters Kamins, etc., set 04/21/26 f. Motion to Compel Arbitration and Stay Case filed 11/26/25 by Craig Barker, Sharon Barker and Stifel, Nicolaus & Company Incorporated, set 04/21/26 g. Motion to Stay Case Pending Court's Ruling on Motion to Compel Arbitration filed 12/09/25 by Craig Barker, Sharon Barker, and Stifel, Nicolaus & Company, set 04/30/26		

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2C.	P22-01799	MATTER OF: JANE SIMMONS EDGINTON REVOCABLE TRUST DATED SEPTEMBER 1, 2021
9:00 AM	HEARING IN RE: VERIFIED SECOND AMENDED PETITION FOR ORDER DETERMINING TRUST VALIDITY FILED BY CATHINE KAMINS, JOHN PETERS, ROBERT HEISDORF, JOAN HEISDORF, SARAH GORMAN ON 5/9/25	
	Need appearances	

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2D. **P22-01799** **MATTER OF: JANE SIMMONS EDGINTON REVOCABLE TRUST DATED SEPTEMBER 1, 2021**

9:00 AM HEARING IN RE: PETITION IN RE: VERIFIED AMENDED PETITION FOR ORDER DETERMINING TRUST VALIDITY, AND FOR FINANCIAL ELDER ABUSE FILED ON 2/6/23 BY CATHERINE KAMINS, JOHN ALLEN PETERS, ROBERT A. HEISDORF AND JOAN C. HEISDORF

-- Superseded by Line 2C --

Need appearances to report status, including discovery

Notes:

- a. Response and Objection of Craig Simmons filed 6-6-2023.
- b. Reply filed 6-13-2023.

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3. **P23-01362** **ESTATE OF: KAREN FRANCISCO**
9:00 AM HEARING IN RE: PETITION TO FIRST AND FINAL ACCT AND REPORT; ALLOWANCE OF COMPENSATION
TO ATTY'S COSTS; FINAL DISTRIBUTION FILED ON 08/21/25 BY CHAROLYN JONES

Need:

1. Verified declaration of petitioner showing compliance with Probate Code § 11005
2. Verified declaration by petitioner to specify whether all charges for legal advertising, bond premiums, probate referee's services and costs of administration have been paid. LR 7.317
3. Proposed Order

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- 4.** **P24-00343** **ESTATE OF: ESTERLINA LOPEZ**
9:00 AM HEARING IN RE: WAIVER OF ACCOUNT; REQUEST FOR DISTRIBUTION AND ATTORNEY'S FEES; FOR SETTLEMENT AND FOR FINAL DISPOSITION THEREOF FILED BY EFRAIN VALDEZ ON 08/22/25
- Need:
1. Evidence of payment of filing fees per Correspondence Memo filed 8-29-2025
 2. Verified declaration by petitioner to include personal representative of Estate of Elias Valdez as a person entitled to receive notice. LR 7.112
 3. Proof of mailing to all persons entitled to receive notice. LR 7.300
 4. Compliance with CRC 7.250 regarding any acts taken under IAEA w/notice of proposed action. (Specifics needed or statement that no action was taken)
 5. Waiver of accounting by personal representative of Estate of Elias Valdez or Accounting that complies with PrC § 1060 *et seq.*
 6. Verified declaration of petitioner showing compliance with Probate Code § 11005, unless account is waived
 7. Authority for distribution of post-deceased spouse's portion directly to petitioner in this proceeding as requested at page 2, ¶ 4 and page 6, ¶ 23
 8. Inventory and Appraisal by Probate Referee.
 9. Spouse did not file an election to subject any inheritance to formal administration so therefore court lacks jurisdiction to order distribution to spouse or fees thereon. Need petition (may be *ex parte*) showing good cause for allowing late election, and order. Otherwise you will need amended petition eliminating spouse's portion and a recalculation of statutory fees. Proposed election must comply with LR 7.305. See PrC §§ 13500, 13501, 13502
 10. Verified declaration by petitioner to show calculation of statutory fee base as required by CRC § 7.705. Specifically, must begin with value of Inventory & Appraisal by Probate Referee and state any loss on sale as relates to maximum statutory fees allowable.
 11. Verified declaration by petitioner to specify whether all charges for legal advertising, bond premiums, probate referee's services and costs of administration have been paid. LR 7.317
 12. Proposed Order

Note: Probate Referee Nick G. Tarlson is assigned to this case. Statement at page 4, ¶ 17 that no Probate Referee was appointed is incorrect.

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5. **P24-01054** **ESTATE OF: MORRIS KONNOFF, JR.**
9:00 AM HEARING IN RE: FIRST AND FINAL ACCOUNT AND REPORT; PETITION FOR SETTLEMENT;
COMPENSATION AND COSTS; FINAL DISTRIBUTION FILED ON 08/22/25 BY SCOTT MORRIS KONNOFF

Need:

1. Verified declaration of petitioner showing compliance with Probate Code § 11005
2. Further support for reimbursement for expenses incurred for ordinary business operations associated with services compensated by professional fees (including copying and postage costs). See Guidelines for Probate Rules - Attachments.
3. Revised, proposed Order to include name of trustee in plan of distribution and as needed in resolution of above. A judgment, decree or order must be complete in itself. LR 7.110

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6. **P24-01545** **ESTATE OF: SAM SHAVER**
9:00 AM HEARING IN RE: AMENDED PETITION FOR PROBATE OF WILL & FOR LETTERS OF ADMINISTRATION
WITH WILL ANNEXED FILED ON 4-2-25 BY CHRIS SINDLE

Need:

1. Appearances
2. Proof of mailing Notice of Petition to Administer Estate and copy of petition to Chris Sindle or waiver of notice. PrC § 8110; LR 7.151(e)

Notes:

1. Objection filed by Dyana Shaver 01/09/25.
2. Petition requests admission of will dated 6-8-2022; however, proposed Order reflects admission of will dated 8-7-2018 and codicil dated 6-8-2022.

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7A. **P25-00528** **MATTER OF: THE LAING FAMILY TRUST, DATED JULY 14, 2017**
9:00 AM HEARING IN RE: PETITION FOR REMOVAL OF TRUSTEE AND APPOINTMENT OF SUCCESSOR TRUSTEE
FILED BY ROBERT LANG ON 08/21/2025

Need:

1. Appearances
2. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property. PrC § 851(a)(2)
3. Proposed Order

Note: Notice of Motion and Motion to Quash filed by Kathleen Schoening 10-3-2025 is set for hearing 3-3-2026.

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7B.

9:00 AM

P25-00528

MATTER OF: THE LAING FAMILY TRUST, DATED JULY 14, 2017

HEARING IN RE: PETITION FOR INSTRUCTIONS; TO TRUSTEE TO SELL TRUST OWNED REAL PROPERTY,
TO MAKE DISTRIBUTIONS, RETAIN RESERVE, BRESLIN ORDER THAT ALL BENEFICIARIES ATTEND
MEDIATION FILED ON 03/25/25 BY KATHLEEN SCHOENING

Need:

1. Appearances
2. Proposed Order

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7C.

9:00 AM

P25-00528

MATTER OF: THE LAING FAMILY TRUST, DATED JULY 14, 2017

HEARING IN RE: TRUSTEE, KATHLEEN SCHOENING'S FIRST AMENDMENT TO PETITION FOR
INSTRUCTIONS: FILED ON 12/02/2025

-- See Line # 7B --

Need appearances

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10.	P25-00583	MATTER OF: THE LAWRENCE B. KARP AND CAROL L. KARP REVOCABLE LIVING TRUST DATED JUNE 30, 2004 AMENDED AND RESTATED JULY 21, 2016
9:00 AM	HEARING IN RE: PETITION FOR REPORT OF TRUST; AN ACCOUNTING; FOR ORDER REQUIRING DISTRIBUTION OF TRUST ASSETS; DAMAGES; REMOVAL OF TRUSTEES FILED ON 04/02/25 BY JEFFREY A. KARP	
	Need appearances to report status	
	Note: Response and Objection filed by David A. Karp and Deborah R. Bailey 07/03/25.	

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11. **P25-01467** **MATTER OF: JACI M. JERNSTEDT REVOCABLE TRUST**
9:00 AM HEARING IN RE: PETITION FOR ORDER CONFIRMING TRUST ASSETS (HEGGSTAD PETITION) FILED ON
08/20/25 BY DEREK J. JERNSTEDT

Need:

1. Verified declaration by petitioner to include current address of Avery Jernstedt so court can confirm mailing
2. Verified declaration by petitioner to include a complete copy of trust. Copy attached to petition is redacted.

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12.	P25-01474	MATTER OF: DONALD AND KATHLEEN MCGRATH FAMILY TRUST, DATED JANUARY 15, 2018
9:00 AM	HEARING IN RE: PETITION FOR ORDER CONFIRMING TRUST TITLE TO REAL PROPERTY FILED ON 08/20/25 BY JONATHAN D. TANNER AND WILLIAM T. MCGRATH	
Petition Approved Proposed Order Submitted No Appearance Required		

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13. **P25-01477** **MATTER OF: ISHWARLAL J. PATEL REVOCABLE LIVING TRUST**
9:00 AM HEARING IN RE: PETITION FOR ORDER CONFIRMING TRUST TITLE TO REAL PROPERTY FILED ON
08/21/25 BY CHETAN PATEL

Petition Approved
Proposed Order Submitted
No Appearance Required

Note: Prayer at page 7, line 22 indicates title to property to be held by Radha N. Patel;
however, proposed Order authorizes title to be held by petitioner. See Acceptance of
Appointment as Successor Trustee at page 29.

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14. 9:00 AM	P25-01485 HEARING IN RE: PETITION TO CONFIRM TRUST ASSETS FILED ON 08/21/25 BY LISA A. LARA	MATTER OF: THE FREDERICK J. SCHREDER LIVING TRUST Need: Verified declaration by petitioner to clarify whether there was a named beneficiary on the account
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